

24STCV08768 24STCV08768

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-21

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Case Number: 24STCV08768 Hearing Date: August 21, 2026 Dept: 732

Superior Court of California

County of Los Angeles

Department 732

NUS APPARELS LTD,

Plaintiff,

v.

GTEX GLOBAL SOURCING, INC., et

al.,

Defendants.

Case No.:

24STCV08768

Hearing Date: August 21, 2026

[TENTATIVE] RULING RE:

Gabriel Z. Reynoso and Winget Spadafora & Schwartzberg LLP's

Motion to be Relieved as Counsel for Defendant GTEX Global Sourcing, Inc..

Code of Civil Procedure § 284 states that

“[t]he attorney in an action or special proceeding may be changed at any time before or after judgment or final determination” upon either consent of both client and attorney, or “[u]pon order of the court, upon the application of either client or attorney, after notice from one to the other..” (Code Civ. Proc. § 284, subd. (b).) California Rule of Court (“CRC”) Rule 3.1362 states the requirements for a motion to be relieved as counsel under Code of Civil Procedure § 284. No memorandum is required (CRC Rule 3.1362, subd. (b)), but the motion must be accompanied by (1) a declaration stating why a motion has been brought instead of filing a consent (without compromising attorney-client confidentiality) (CRC Rule 3.1362, subd. (c)); (2) proof of service of the motion (CRC Rule 3.1362, subd. (d); and (3) all hearing dates scheduled in the action or proceeding, including the date of trial. (CRC Rule 3.1362, subd. (e).) “The proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers.” (Ibid.)

The present motion is brought by Gabriel Z.

Reynoso for the firm Winget Spadafora & Schwartzberg LLP, counsel for Defendant GTEX Global Sourcing, Inc. The motion includes a declaration of counsel attesting to the breakdown of the attorney-client relationship, a proof of service, and a proposed order form listing upcoming dates of hearing in this action. Trial is set for May 18, 2027.

Defendant

GTEX Global Sourcing, Inc., is a corporate entity. Corporate litigants cannot represent themselves in unlimited civil actions. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.) “[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.” (CLD Construction, Inc, *supra*, 120 Cal.App.4th at p. 1150.) Accordingly, concurrent with this order, the court sets an OSC re: GTEX Global Sourcing, Inc.’s retention of counsel in this action, with the warning that its failure to do so could result in the striking of its pleadings and the entry of its default.

Gabriel

Z. Reynoso and Winget Spadafora & Schwartzberg LLP’s Motion to be Relieved as Counsel for Defendant GTEX Global Sourcing, Inc. is GRANTED, effective upon moving counsel

filing with the court proof of service of a copy of the signed order on the client, as set forth in Cal. Rules of Court Rule 3.1362(e). The court sets an OSC re: GTEX Global Sourcing, Inc.'s retention of counsel in this action, with the warning that its failure to retain counsel could result in the striking of its pleadings and the entry of its default.

Dated: August 21, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court